

and its reasons for its allocation, but I think that, if the district judge had, in this case, exercised the duty which lay upon him he would have held that there was no substantial foundation for the Commission's treatment of General Mortgage bondholders and would have been bound, therefore, to disapprove the plan. As he did not perform that duty, I think that, unless the right to come to this Court is vain, we have the duty to correct his action. I should, therefore, reverse the decree below.

EX PARTE REPUBLIC OF PERU.

ON MOTION FOR LEAVE TO FILE PETITION FOR A WRIT OF PROHIBITION AND/OR A WRIT OF MANDAMUS.

No. 13, original. Argued March 1, 1943.—Decided April 5, 1943.

1. This Court has power, under 28 U. S. C. §§ 342, 377, to issue a writ of prohibition or mandamus to restrain the district court from exercise of further jurisdiction *in rem*, in an admiralty suit, although the case be one in which direct appellate jurisdiction is vested in the circuit court of appeals, this Court having ultimate discretionary jurisdiction by certiorari; but such power will be exercised only where the question is of public importance or is of such nature that the exercise of such power is peculiarly appropriate. *Ex parte United States*, 287 U. S. 241. Pp. 582, 586.
2. A case of that character is presented by the claim of a friendly foreign state that its vessel, seized by the district court under a libel *in rem* in a private litigation, should be released as immune from suit, which claim of immunity had been recognized by the Department of State, whose action has been certified to the district court. P. 586.
3. In a suit *in rem* in admiralty by a private libellant for breach of a charter party, the district court acquired jurisdiction *in rem* by seizure and control of a vessel owned by the Republic of Peru. The Republic moved for release of the vessel upon the ground of sovereign immunity from suit and there was presented to the court by the Attorney General a certification showing that such immunity had been recognized and allowed by the State Department. *Held*